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General Comment

While it is certain that tech companies are, in this day and age, beholden only to their shareholders, it is the purpose of the American government to be beholden to its people. If OpenAI, and other AI development companies, are allowed to ransack the copy-written materials of the American people- its books, plays, art, and scientific research, it opens the doors for these corporations to see the patented and copy-written materials of its competitors, and other companies, as free game. It is an open secret that the private data of corporations that have been susceptible to hacks and leaks is available on the internet, and the data-scrappers that collect data for Large Language Models do so wantonly and without curation. This means that, as we speak, OpenAI and other AI companies may have within their proprietary models data that is strictly the property of other corporations. OpenAI claims its models are a black box and that it is impossible to determine what data exists within them. This has been disproved many times by technological journalists and data scientists familiar with the technology. What's more, with OpenAI as the most flagrant example, this hoarding of resources, funds, and data, has been proven by the Chinese DeepSeek to be wildly inefficient. Pursuing legal exceptions for bloated American AI developers is a blatant money-grab by developer-executives who know that without the American Government holding their hand, they would fall down.

It would be better policy to encourage competition within the AI market, and to leave the matter of copyright to individual casework. Everyone with a stake in the American economy, whether it be through copy-written or patented materials, should have the option to opt out of having their material included in AI development. This opt-out should be simple and straightforward, and carry serious consequences if it is ignored. The autonomy of an American's Ideas must be as sacrosanct as the autonomy of an American's body and soul.